

Amendment No. 1 to HB1270

White

Signature of Sponsor

AMEND Senate Bill No. 937*

House Bill No. 1270

by deleting subsections (d) and (e) in Section 2 and substituting:

(d) A public institution of higher education or a faculty member, employee, or contractor of the institution shall not subject a student, faculty member, employee, or contractor of the institution to an adverse action or disciplinary action for refusing to provide the individual's preferred pronouns. Each public institution of higher education shall annually notify students, faculty members, and employees of the institution of the prohibition in this subsection (d). The notice must be submitted to students, faculty members, and employees separate from any other notice or report provided by the institution.

AND FURTHER AMEND by adding the following as a new subsection in Section 3:

(f) As used in this section, "state employee" or "contractor of the state" does not include an employee, faculty member, or contractor of a public institution of higher education.

AND FURTHER AMEND by deleting "shall not ask" in subdivision (d)(1) in Section 1 and substituting "shall not require".

AND FURTHER AMEND by deleting subsection (e) in Section 1 and substituting:

(e)

(1) If a public school, LEA, or a teacher, employee, or contractor of a public school or LEA requires a student, teacher, employee, or contractor of the public school or LEA to use a preferred name or preferred pronoun in violation of subdivision (b)(1) or subjects a student, teacher, employee, or contractor of the public school or LEA to an adverse action or disciplinary action for refusing to use a preferred name or preferred pronoun in violation of subdivision (b)(3), then, the student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor who was required to use a preferred name or preferred pronoun in violation of subdivision (b)(1) or who was subjected to an adverse action or disciplinary action for refusing to use a preferred name or preferred pronoun in violation of subdivision (b)(3):

(A) May file a complaint, in writing, with the director of the public charter school or the director of schools for the LEA, as applicable, alleging a violation of subdivision (b)(1) or (b)(3). A complaint must be filed with the appropriate director no later than ten (10) days from the date of the alleged violation. The director shall require the public school or LEA to remedy a violation of subdivision (b)(1) or (b)(3) no later than thirty (30) days from the date on which the complaint was filed. The appropriate director, or the director's designee, shall notify the complainant, in writing, of the steps taken by the public school or LEA to address the alleged violation; and

(B) Has a private cause of action against the public school or LEA for injunctive relief, monetary damages, and any other relief available under law, if the student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor has

filed a complaint pursuant to subdivision (e)(1)(A) alleging a violation of subdivision (b)(1) or (b)(3) and the public school or LEA has failed to remedy the alleged violation. The student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor is also entitled to recover reasonable costs and attorney fees. A student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor has two (2) years from the date of the director's, or director's designee's, written notification to the complainant pursuant to subdivision (e)(1)(A) to file an action.

(2) If a public school, LEA, or a teacher, employee, or contractor of a public school or LEA violates subdivision (d)(1), then the student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor of the public school or LEA who was required to provide their preferred pronouns or who was subject to an adverse action or disciplinary action for refusing to provide their preferred pronouns in violation of subdivision (d)(1):

(A) May file a complaint, in writing, with the director of the public charter school or the director of schools for the LEA, as applicable, alleging a violation of subdivision (d)(1). A complaint must be filed with the appropriate director no later than ten (10) days from the date of the alleged violation. The director shall require the public school or LEA to remedy a violation of subdivision (d)(1) no later than thirty (30) days from the date on which the complaint was filed. The appropriate director, or the director's designee, shall notify the complainant, in writing, of the steps taken by the public school or LEA to address the alleged violation; and

(B) Has a private cause of action against the public school or LEA for injunctive relief, monetary damages, and any other relief available under law, if the student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor has filed a complaint pursuant to subdivision (e)(2)(A) alleging a violation of subdivision (d)(1) and the public school or LEA has failed to remedy the alleged violation. The student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor is also entitled to recover reasonable costs and attorney fees. A student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor has two (2) years from the date of the director's, or director's designee's, written notification to the complainant pursuant to subdivision (e)(2)(A) to file an action.

(3) If a teacher, employee, or contractor of a public school or LEA violates subdivision (d)(2) or (d)(3), then the student, or the student's parent or legal guardian if the student is an unemancipated minor, who was addressed or referred to in violation of subdivision (d)(2) or who was asked to refer to a teacher, employee, or contractor of the public school or LEA in violation of subdivision (d)(3):

(A) May file a complaint, in writing, with the director of the public charter school or the director of schools for the LEA, as applicable, alleging a violation of subdivision (d)(2) or (d)(3). A complaint must be filed with the appropriate director no later than ten (10) days from the date of the alleged violation. The director shall require the public school or LEA to remedy a violation of subdivision (d)(2) or (d)(3) no later than thirty (30) days from the date on which the complaint was filed. The appropriate director, or the director's designee, shall notify the

complainant, in writing, of the steps taken by the public school or LEA to address the alleged violation; and

(B) Has a private cause of action against the public school or LEA for injunctive relief, monetary damages, and any other relief available under law, if the student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor has filed a complaint pursuant to subdivision (e)(3)(A) alleging a violation of subdivision (d)(2) or (d)(3) and the public school or LEA has failed to remedy the alleged violation. The student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor is also entitled to recover reasonable costs and attorney fees. A student, or the student's parent or legal guardian if the student is an unemancipated minor, teacher, employee, or contractor has two (2) years from the date of the director's, or director's designee's, written notification to the complainant pursuant to subdivision (e)(3)(A) to file an action.

AND FURTHER AMEND by deleting "shall not ask" in subsection (d) in Section 3 and substituting "shall not require".

AND FURTHER AMEND by deleting subsection (e) in Section 3 and substituting:

(e) Each state board, commission, department, agency, and contractor shall annually notify its employees and personnel of the prohibition in subsection (d). The notice must be submitted to employees and personnel separate from any other notice or report provided by the state board, commission, department, agency, or contractor. Subsection (d) does not apply to public institutions of higher education.